Date: 1st June 2016

Ref:

THIS SERVICE CONTRACT is made the

BETWEEN

The party whose particulars are set out in **Section 1 of the First Schedule** (referred to as the **"Company"**) of the one part

AND

The party whose particulars are set out in **Section 2 of the First Schedule** (referred to as the **"Contractor"**) of the other part.

The Company and the Contractor shall collectively be referred to as the "Parties" and individually as the "Party".

WHEREAS

A. The Company desires to engage the Contractor to provide certain specialized work as described in **Section 3 of the First Schedule** (**"Work"**).

B. The Contractor is willing to perform the Work and represents that he has the experience and capability to perform the Work.

C. Subject to the terms and conditions hereinafter contained, the Company and the Contractor have agreed to enter into this Contract whereby the Company has agreed to appoint the Contractor and the Contractor has agreed to accept this Contract.

NOW THIS CONTRACT IS WITNESSETH as follows:-

1. PERIOD OF SERVICE

The Contractor Period of Service is as stated in **Section 5 of the First Schedule** ("Period of Service") and commencing at a date as stated in **Section 4 of the First Schedule.**

2. PAYMENT

The Company shall pay the Contractor the fee corresponding with period of Service in the sum as stated in **Section 6 of the First Schedule** ("Service Fee"), payable at the time and in the manner as stated in **Section 7 of the First Schedule** ("Payment of Fee").

2.1.1 For the avoidance of doubt, the Service Fee shall be based on key performance indicator approved by the Company.

2.1.2 The Contractor shall work at **least** 9 hours a day from Monday to Friday inclusive lunch hour.

2.1.3 The Contractor may be required from time to time to work hours in excess of these requirements and is not entitled to medical leave, declared Holiday or Rest Day or annual leave.

2.1.4 The Company will not pay the Contractor the statutory requirement under the Malaysian statute which are the Employers Provident Fund and SOSCO. The Contractor is not an employee of the company and engaged as an independent contractor engaged by the Company to carry out the Work

2.1.5 The Contractor shall be reimbursed from the Company any Transportation Claims (parking and toll). Any entertainment expense is subject to prior approval of the Company. The expenses mentioned in this clause shall be all necessary and reasonably incurred in your course of work. It shall only be reimbursable to The Contractor within a reasonable time.

2.1.6 The Company will provide Workman's Compensation to the Contractor only during the Contractor's working hours.

2.1.7 The Contractor is required to indemnify the Company for any liability incurred for income tax.

2. CONTRACTOR'S COVENANTS

(a) Agreement not to Compete

Shall not engage any sales, marketing, distribution or promotion of any services that are competitive with the Company during the term of this agreement and for a period of three (3) months immediately after the expiration of this Contract;

(b) Confidentiality

Shall not disclose to anyone any Confidential Information during the term of this contract. This obligation shall survive without limit in time even after completion or termination of this Contract;

(c) Intellectual Property

All Intellectual Property, documents, information, drawings, software, hardware, equipment, data or any other material created shall vest in the Company. The Contractor warrants that in the provision of the Work, the Contractor will not violate, misappropriate or infringe any Intellectual Property rights of any 3rd Party.

(d) Indemnity

To be responsible and shall indemnify the Company against all damages, expenses, liabilities and costs of any nature whatsoever arising from any claim, action or proceedings taken against the Company by any party in connection with the Service, caused by negligence or wilful act by The Contractor.

(d) Compliance with Statutes

To observe and comply with all laws, by-laws, rules and regulations of the appropriate authority having power in that behalf affecting usage of the Service which are now in force or which may hereafter be created.

3. COMPANY'S COVENANTS

(a) Payment of Service Fee

To punctually pay the Service Fee without any deductions whatsoever in the manner set out in Section 7 of Schedule 1;

(b) Enjoyment of Company's property

To permit the Contractor to peaceably enjoy the use of the Company's property during the Service without any interruption or disturbance by the Company;

4. IT IS HEREBY AGREED AS FOLLOWS:-

(a) Schedules

The Schedules attached form an integral part of this Contract. In the event there are any changes and/or variations in respect of the Schedules to this Agreement, both Parties shall agree in writing to such changes and or variations

(b) Termination

The Contractor may terminate this Agreement with one (1) month's written notice.

The Company may terminate this Contract immediately without notice in the event that the Contractor fails to observe or perform any material obligation in this Contract. A material breach of this Contract shall include making false, fraudulent or inappropriate statements to the Company, its employees; falsifying or misrepresenting any information to the Company.

5. EXTENSION OF SERVICE

The Contractor shall at the written request of the Company before the expiration of the Period of Service, *and if there shall not at the time of such request, be any existing breach or non-observance of any of the covenants on the part of the Contractor*, grant to the Company a further term of the Service as detailed in **Section 9 of the First Schedule ("Renewal")**, at such rate to be mutually agreed by the Parties. Such Renewal shall be subject to and containing the like covenants and provisions as are herein contained or such variations and/or modifications thereof as shall be mutually agreed by the Parties hereto save and except this covenant for Renewal. If the Contractor do not reply in writing 14 days after the written request of the Company, it shall be construed as consent by the Contractor on the written request of the Company for extension of service.

6. WAIVER OF COVENANTS

Subject to the provisions of Clause 5, no consent or waiver expressed or implied by the **Company to or of any breach** of any covenant, condition or duty of the Contractor shall be construed as consent or waiver to or of any breach of the same or of any other covenant, condition or duty and shall not prejudice in any way the rights, powers and remedies of the Company herein contained.

7. BONUS

The Contractor shall be paid a sum **Section 8 of the First Schedule** upon the approval of two (2) work superiors of the Contractor which shall not be disputable by the Contractor.

8. NOTICES

All notices shall be given in writing and may be delivered by hand or or sent by facsimile transmissions or email to the intended recipient at its address. Notices sent shall be deemed delivered as at the date and time of delivered.

9. FORCE MAJEURE

Neither the Contractor nor the Company shall be liable for failure to perform any of its obligations, or for damage or loss to the other Party if such failure, damage or loss is caused by Acts of God or other casualty, war, disaster, riots, strikes, lockouts, force majeure or any similar circumstances or causes beyond the reasonable control of either Party.

10. TIME

Time whenever mentioned shall be of the essence of the Agreement.

11. DEFINITIONS

In this Agreement where the context so admits:-

(a) References to "**day" or "days**" shall mean a twenty-four (24) hours period, as in a calendar day. References to any statute shall be construed as references to that statute as from time to time amended or re-enacted In Malaysia.

(b) Where there are two or more persons or Parties included or comprised in the expression the "**Company**" or the "**Contractor**" is expressed to be made by and on the part of the Party.

(c) "**Confidential Information**" shall include any trade's confidential, proprietary or secret information that is disclosed to the **Contractor, or the Contractor otherwise learn in the course of dealing or soliciting** with the Company's client and / or agent in the form of business plan, customer's list, financial statement, software programme, software diagrams, flow charts and products plan.

(d) "**Intellectual Property**" means (a) confidential information, trade secrets, technical information, know-how and all other proprietary information from or belonging to Company and (b) copyright, patents, registered designs, brand names, logos, symbol and all other service marks belonging to the Company and/or its related corporations;

(e) the headings in this Contract are for convenience only and shall not affect the interpretation hereof;

(f) unless the context otherwise requires, references to the singular number or persons shall include references to the plural number and persons and vice versa;

(g) the recitals and Schedules to this Contract shall be taken, read and construed as essential parts of this Contract.

11. MODIFICATION AND WAIVER

This Contract may not be modified except by writing signed by both Parties. A waiver by either Party of any default in the performance of this Contract shall be in writing and shall not be deemed to be a continuing waiver or a waiver of any other default or of any other terms of this Contract, but shall apply solely to the event to which the waiver is directed.

12. GOVERNING LAW AND SEVERABILITY

This Contract shall be construed and governed by the laws of Malaysia. Should any provisions of this Contract and /or its conditions be illegal or not enforceable under the laws of Malaysia it or they shall be considered severable, and this Contract and its conditions shall remain in full force and affect and be binding upon the Parties as though the said provision or provisions had never been included

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THE PARTIES have signed this Contract on the day first mentioned above.

Signed for and on behalf of
NUMONI MALAYSIA SDN BHD
(1018098-A)

.....
Name:
Designation
Company Stamp:

Witnessed by

……
Name:
NRIC No.

Signed by the Contractor



.....
Name: Brian Young Wei Yan
Designation: Mr.

Witnessed by

.....
Name:
NRIC No:

FIRST SCHEDULE
(which is to be taken read and construed as an essential part of this Contract)

SECTION	DETAILS	PARTICULARS
1.	The Company	**NUMONI MALAYSIA SDN BHD (1018098-A)** D-07-1, Plaza Kelana Jaya Jalan SS7/13A, Kelana Jaya 47301 Petaling Jaya, Selangor
2.	The Contractor	Brian Young Wei Yan Studio 302 35 Rue Du Docteur Babinski 75018 Paris, France
3.	Scope of Work	Please refer to Second Schedule
4.	Commencement date of Service	8 June 2016 (Tentative)
5.	Period of Service	Three (3) months
6.	Service Fee	**Singapore Dollar Twenty Thousand (SGD 20,000.00)** to be paid as follows: I. SGD 3,333.33 per month II. SGD 2,000.00 paid on signing of this i. contract as living expenses for the ii. Period of Service III. SGD8,000.00 on completion of i. Period of Service.
7.	Payment of Service Fee	Service Fee under Section 6 (i) is paid within seven (7) days from the end of calendar month
8.	Bonus	Singapore Dollar Ten Thousand (SGD 10,000.00)
9.	Renewal	Option to renew for a further successive period

SECOND SCHEDULE

(which is to be taken read and construed as an essential part of this Contract)

WORK SCOPE

The Contractor's work scope includes the following but is not exhaustive and may include other work requirements as informed by the Company, related to or as an extension of the scope of work:

- **Work on Numoni ACACIA platform and related components**
- **Develop software applications & related software modules**
- **Work with Project Manager & Business Analyst on software development**
- **Adhere to the mutually agreed project schedule**
- **Work with "off the shelf" software modifying and integrating it into the existing system if needed.**
- **Reviewing current systems**
- **Presenting ideas for system improvements, including cost proposals**
- **Working closely with analysts, designers and staff**
- **Producing detailed specifications and writing the programme code**
- **Testing the product in controlled, real situations before going live**
- **Maintaining the systems once they are up and running**